

items are wrongfully bought, sold, traded, dealt in or disposed."

Paragraph 27f(3) Part IV, MCM, "Punitive Articles" is amended to read as follows:

"(3) Dealing in captured or abandoned property.

In that ____ (personal jurisdiction data), did, (at/on board-location), on or about ____ 19____, (buy) (sell) (trade) (deal in) (dispose of) (____) certain (captured) (abandoned) property, to wit:____, ((a firearm) (an explosive)), of a value of (about) \$____, thereby (receiving (expecting) a (profit) (benefit) (advantage) to (himself/herself) (____, his/her accomplice) (____, his/her brother) (____))."

Paragraph 31c(6), Part IV, MCM, "Punitive Articles" is deleted.

The Analysis accompanying paragraph 31(c)(6) in Appendix 23, MCM is deleted and replaced with the following:

"1999 Amendment: Subparagraph c(6), "Statements made during an interrogation" was removed in light of *United States v. Solis*, 45 M.J. 31 (CAAF 1997)."

Paragraph 46c(1)(h), Part IV, MCM, "punitive Articles" is amended by creating the following new subparagraph (vi) as follows:

(vi) Credit, Debit, and Electronic Transactions. Wrongfully engaging in a credit, debit, or electronic transaction to obtain goods or money is an obtaining-type larceny by false pretense. Such use to obtain goods is usually a larceny of those goods from the merchant offering them. Such use to obtain money or a negotiable instrument (e.g. withdrawing cash from an automated teller or a cash advance from a bank) is usually a larceny of money from the entity presenting the money or a negotiable instrument. For the purpose of this section, the term "credit, debit, or electronic transaction" includes the use of an instrument or device, whether known as a credit card, debit card, automated teller machine (ATM) card or by any other name, including access devices such as code, account number, electronic serial number or personal identification number, issued for the use in obtaining money, goods, or anything else of value."

The Analysis accompanying paragraph 46(c) in Appendix 23, MCM is amended by inserting the following at the end thereof:

"1999 Amendment: Subparagraph c(1)(h)(vi) is new. It was added to provide guidance on how unauthorized credit, debit, or electronic transactions should usually be charged. See *United States v. Duncan*, 30 M.J. 1284 (N.M.C.M.R. 1990) citing *United States*

v. Jones, 29 C.M.R. 651 (A.B.R. 1960), petition denied, 30 C.M.R. 417 (C.M.A. 1960) regarding thefts from ATM machines. Alternatives charging theories are also available, see *United States v. Ragins*, 11 M.J. 42 (C.M.A. 1981); *United States v. Leslie*, 13 M.J. 170 (C.M.A. 1982); *United States v. Christy*, 18 M.J. 688 (N.M.C.M.R. 1984); and *United States v. Schaper*, 42 M.J. 737 (A.F.Ct.CrimApp. 1995) The key under Article 121 is that the accused wrongfully obtained goods or money from a person or entity with a superior possessory interest."

Dated: May 17, 1999.

L.M. Bynum,

Alternate OSD Federal Register Liaison Officer, Department of Defense.

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BILLING CODE 5001-10-M

DEPARTMENT OF DEFENSE

Office of the Secretary

Defense Intelligence Agency, Science and Technology Advisory Board Closed Panel Meeting

AGENCY: Department of the Defense, Defense Intelligence Agency.

ACTION: Notice.

SUMMARY: Pursuant to the provisions of Subsection (d) of Section 10 of Public Law 92-463, as amended by Section 5 of Pub. L. 94-409, notice is hereby given that a closed meeting of the DIA Science and Technology Advisory Board has been scheduled as follows:

DATE: 25 May 1999 (0800 to 1600).

ADDRESSES: The Defense Intelligence Agency, 3100 Clarendon Blvd., Arlington, VA 22201-5300.

DATE: 26 May 1999 (0800 to 1600).

ADDRESSES: The Defense Intelligence Agency, 200 MacDill Bvd., Washington, D.C. 20340-5100.

FOR FURTHER INFORMATION CONTACT: Maj. Donald R. Culp, Jr., USAF, Executive Secretary, DIA Science and Technology Advisory Board, Washington, DC. 20340-1328 (202) 231-4930.

SUPPLEMENTARY INFORMATION: The entire meeting is devoted to the discussion of classified information as defined in Section 552b(c)(1), Title 5 of the U.S. Code, and therefore will be closed to the public. The Board will receive briefings on and discuss several current critical intelligence issues and advise the Director, DIA, on related scientific and technical matters.

Dated: May 17, 1999.

L.M. Bynum,

Alternate OSD Federal Register Liaison Officer, Department of Defense.

[FR Doc. 99-12800 Filed 5-20-99; 8:45 am]

BILLING CODE 5001-10-M

DEPARTMENT OF DEFENSE

Office of the Secretary

Defense Intelligence Agency, Science and Technology Advisory Board Closed Panel Meeting

AGENCY: Department of Defense, Defense Intelligence Agency.

ACTION: Notice.

SUMMARY: Pursuant to the provisions of Subsection (d) of Section 10 of Public Law 92-463, as amended by Section 5 of Public Law 94-409, notice is hereby given that a closed meeting of the DIA Science and Technology Advisory Board has been scheduled as follows:

DATES: 24 May 1999 (900 am to 1600 pm).

ADDRESSES: The Defense Intelligence Agency, 200 MacDill Blvd, Washington, DC 20340-5100.

FOR FURTHER INFORMATION CONTACT: Maj. Donald R. Culp, Jr., USAF, Executive Secretary, DIA Science and Technology Advisory Board, Washington, DC 20340-1328, (202) 231-4930.

SUPPLEMENTARY INFORMATION: The entire meeting is devoted to the discussion of classified information as defined in Section 552b(c)(1), Title 5 of the U.S. Code, and therefore will be closed to the public. The Board will receive briefings on and discuss several current critical intelligence issues and advise the Director, DIA, on related scientific and technical matters.

Dated: May 17, 1999.

L.M. Bynum,

Alternate OSD Federal Register Liaison Officer, Department of Defense.

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BILLING CODE 5001-10-M

DEPARTMENT OF DEFENSE

Office of the Secretary

Strategic Environmental Research and Development Program, Scientific Advisory Board

ACTION: Notice of cancellation.

In accordance with Section 10(a)(2) of the Federal Advisory Committee Act (P.L. 92-463), cancellation of the announcement is made of the following Committee meeting: